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STATEMENT OF ASSISTANT ATTORNEY GENERAL CHRISTOPHER A. WRAY
ON THE LEA FASTOW CASE

WASHINGTON, D.C. - Assistant Attorney General Christopher A. Wray of the Criminal Division issued the following statement on today's sentencing hearing in Houston, Texas of former Enron Assistant Treasurer Lea Fastow:

"In January 2004, the Enron Task Force entered into a plea agreement with Lea Fastow which provided for a sentence of 10 months -- 5 months in prison, 5 months home confinement -- subject to court approval. This recommended sentence would be within the range set forth by the federal sentencing guidelines for this offense. Such plea agreements are provided for by Rule 11(c)(1)(C) of the Federal Rules of Criminal Procedure. Pursuant to that rule, the agreement was not binding on the Court, and the defendant was entitled to withdraw her guilty plea if the Court rejected the agreed-upon sentence. The Court has now rejected the plea agreement, and the defendant has withdrawn her plea, as is her right under the rules. In addition, the Court ruled it will try the case in Brownsville, Texas, beginning June 2, 2004. Accordingly, the Enron Task Force is now preparing for trial.

"The plea and cooperation agreement reached with Lea Fastow's husband, former Enron Chief Financial Officer Andrew Fastow, is not affected by today's rulings."

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